

CBC's moving papers raise Plaintiffs' failure to provide their discovery responses before CBC's motion was due and filed, and they explain the relevance of the discovery responses to the good faith determination and allocation of the settlement proceeds as they pertain to Plaintiffs' damage claims in light of the claims alleged in the Complaint and the settlement. (CBC MPA ISO Mtn. p. 3, ll. 21-25; Ginn Decl. ¶ 8.) (See also CBC MPA ISO Mtn. pp. 2-3, p. 5, ll. 15-22, p. 6, ll. 1-16, p. 6, l. 25 - p. 7, l. 8; Compl. ¶ 12, p. 3, ll. 24-27 and ¶ 16, l. 4, ll. 18-21 ["errors, defects and nonconforming work existed related to: exterior/interior foundation, subfloor support, attic/roof structural . . . misaligned doors . . .".])

The evidence filed with the CBC reply was not available when CBC filed the motion contesting the Application, based on the filing deadline under Code of Civil Procedure section 877.6(a)(2) and the extended discovery response date requested by Plaintiffs. Though the general rule is that new evidence should not be presented for the first time in a reply, such evidence can be considered when good cause is shown and when the other party is given an opportunity to address the new evidence. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.)

The Court finds good cause to consider the reply evidence under the circumstances, including the fact CBC raised the significance of the discovery responses in its moving papers and that the evidence was not available to CBC when it filed its motion in part because Plaintiffs asked for a delay in providing the responses. The Court, however, will give Applicants an opportunity to address the reply evidence.

Supplemental Briefing

Applicants may file a supplemental opposition addressed to the evidence filed with CBC's reply. Applicants' supplemental opposition shall be filed and served by January 30, 2026. CBC may file a supplemental reply to Applicants' supplemental opposition by February 6, 2026.

The parties' supplemental briefing should also address and clarify Applicants' position that the Willow Creek settlement resolves construction defects related to "framing" although the Willow Creek subcontract encompassed both framing and foundation work, and the implications for the good faith settlement determination. (See Appl. p. 3, ¶ 3, ll. 1-4, and p. 5, ll. 6-8; Opp. to Mtn. p. 3, l. 1-2 citing Kelly Decl. Exh. 2; Opp. to Mtn. p. 3, ll. 11-14, p. 5, ll. 1-3, ll. 5-6, and ll. 26-27, and p. 6, ll. 2-4.).

The continued hearing on the CBC motion and the Application shall be set for February 13, 2026.

9. 9:00 AM CASE NUMBER: C25-01756
CASE NAME: JASMINE MORRIS-HUGHES VS. ALAMEDA CONTRA COSTA TRANSIT DISTRICT
HEARING ON PETITION IN RE: LEAVE TO PRESENT LATE GOVERNMENTAL CLAIMS
FILED BY: MORRIS-HUGHES, JASMINE
TENTATIVE RULING:

For the reasons stated in the moving papers, Plaintiff's unopposed Petition for Leave to Present Late Governmental Claims is granted. Plaintiff JASMINE MORRIS-HUGHES is granted relief from the provisions of California Government Code § 945. The claim Plaintiff served on TriDelta Transit on July 11, 2025 is deemed to be timely.